

BACKGROUND GUIDE

(International Court of Justice)



UNITED NATIONS

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Welcome to the International Court of Justice

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations and serves as the world's highest court for disputes between sovereign States. Unlike other committees that focus primarily on diplomacy or policy-making, the ICJ committee challenges delegates to think and argue as international legal practitioners. Delegates are expected to interpret international law, analyse historical evidence, evaluate treaties, and construct persuasive legal arguments based on established legal principles rather than political opinion.

The agenda for this committee—**Singapore v. Malaysia: The Pedra Branca Island Dispute**—is one of the most significant territorial and maritime disputes adjudicated by the ICJ. Although the Court delivered its landmark judgment in 2008, the case remains highly relevant to international law because it illustrates how sovereignty, historical title, effective occupation, treaty interpretation, and maritime entitlement are examined and resolved under international legal principles. The dispute also demonstrates the importance of peaceful settlement of conflicts through judicial mechanisms instead of military confrontation.

Throughout this committee, delegates will assume the roles of legal representatives, advisers, and experts tasked with presenting arguments before the Court. Success in this committee depends upon meticulous research, critical legal analysis, and the ability to apply international law to complex factual circumstances. Delegates are encouraged to move beyond political rhetoric and instead rely upon authoritative legal sources, judicial precedents, treaties, official correspondence, maps, and documentary evidence.

This Background Guide has been prepared to provide delegates with a comprehensive understanding of the committee, the legal framework governing the dispute, the historical context of the case, and the principal arguments advanced by both Singapore and Malaysia. While it serves as a strong foundation for preparation, delegates are expected to conduct further independent research using the bibliography and additional credible legal sources.

We wish every delegate the very best in preparing for this intellectually engaging committee and look forward to witnessing informed, respectful, and thought-provoking debate.

Junior Model United Nations (JMUN) 2026
The Foundation School, Gunjur
International Court of Justice (ICJ)

Letter from the Executive Board

Dear Esteemed Delegates,

It is our pleasure to welcome you to the **International Court of Justice (ICJ)** at **The Foundation School Junior Model United Nations (JMUN) 2026**.

On behalf of the Executive Board, we congratulate you on taking part in a committee that demands analytical thinking, legal reasoning, and effective advocacy. Unlike most Model United Nations committees, the ICJ is not a platform for political debate. Instead, it is a judicial forum where delegates are expected to argue cases using international law, treaties, judicial precedents, historical evidence, and well-reasoned legal principles.

This year's agenda, "**Singapore v. Malaysia: The Pedra Branca Island Dispute**," offers delegates the opportunity to explore one of the most significant territorial disputes decided by the International Court of Justice. Although Pedra Branca is a small island, the legal issues surrounding sovereignty, effective occupation, maritime entitlement, and State conduct have had a lasting impact on international jurisprudence. As delegates, your role will be to examine these issues critically, evaluate the evidence presented by both parties, and develop persuasive legal arguments grounded in international law.

Success in this committee will depend upon thorough preparation. We strongly encourage every delegate to research beyond this Background Guide by consulting the official ICJ Judgment, relevant treaties, historical documents, and scholarly sources. Understanding not only *what* happened, but also *why* it happened and *how* the Court reached its conclusions, will allow you to participate more effectively in committee.

Throughout the conference, we expect delegates to uphold the values of professionalism, diplomacy, respect, and academic integrity. Engage in debate with an open mind, challenge ideas rather than individuals, and support every argument with credible evidence. Remember that the objective of this committee is not simply to defend a position, but to apply international law objectively and arrive at reasoned legal conclusions.

We hope this committee provides you with a deeper appreciation of international law and strengthens your skills in research, public speaking, negotiation, and critical thinking. We look forward to witnessing thoughtful debate, compelling legal advocacy, and meaningful collaboration throughout the conference.

We wish you the very best in your preparation and look forward to welcoming you to the International Court of Justice.

Yours sincerely,

The International Court of Justice

1. Establishment

- Established in **1945** under the **United Nations Charter**.
- Began functioning in **April 1946**, replacing the Permanent Court of International Justice (PCIJ).
- It is the **principal judicial organ of the United Nations**.

2. Location

- Headquartered at the **Peace Palace, The Hague, Netherlands**.
- It is the only principal UN organ located outside New York.

3. Composition

- Consists of **15 independent judges**.
- Judges serve **9-year terms**.
- Elections are held jointly by the **UN General Assembly** and the **UN Security Council**.
- No two judges may be from the same country.

4. Jurisdiction

The ICJ performs two primary functions:

- **Contentious Cases:** Resolves legal disputes between sovereign States.

- **Advisory Opinions:** Provides legal opinions to authorised UN organs and specialised agencies.

5. Sources of International Law

Under **Article 38(1) of the Statute of the ICJ**, the Court relies on:

- International treaties and conventions.
- Customary international law.
- General principles of law.
- Judicial decisions and legal writings as subsidiary sources.

6. Difference Between the ICJ and ICC

ICJ	ICC
Resolves disputes between States	Tries individuals accused of international crimes
Part of the United Nations	Independent international court
Deals with civil legal disputes	Deals with criminal offences such as genocide and war crimes

7. Role in the Pedra Branca Case

- Singapore and Malaysia jointly submitted the dispute to the ICJ in **2003**.
- The Court examined historical records, treaties, official correspondence, and State conduct.
- On **23 May 2008**, the ICJ awarded **Pedra Branca to Singapore, Middle Rocks to Malaysia**, and ruled that **South Ledge belongs to the State in whose territorial waters it is located**.

8. Expectations from Delegates

Delegates should:

- Base arguments on international law.
- Cite treaties and legal principles.
- Present factual evidence
- Respect judicial procedure and committee decorum.
- **Rules of Procedure**

1. Roll Call

- The committee session begins with a roll call conducted by the Executive Board.
- Delegates must respond with **"Present"** or **"Present and Voting."**

- Delegates responding "**Present and Voting**" must vote either **For** or **Against** on substantive matters and cannot abstain.

2. **General Speakers List (GSL)**

- The GSL is the default form of debate.
- Delegates deliver speeches explaining their country's legal position.
- Speaking time is determined by the Executive Board or through a motion.
- Delegates may yield their remaining time to the Chair, another delegate, or questions.

3. **Moderated Caucus (MOD)**

- A structured debate focusing on one specific issue.
- Requires a motion specifying:
 - Total duration.
 - Individual speaking time.
 - Topic of discussion.
- Delegates speak only when recognised by the Chair.

4. **Unmoderated Caucus (UNMOD)**

- Delegates move freely around the committee.
- Used to:
 - Draft directives.
 - Build legal arguments.
 - Share research.
 - Negotiate with other delegations.

5. **Points**

Delegates may raise the following points:

- **Point of Personal Privilege** – For personal discomfort affecting participation.
- **Point of Parliamentary Inquiry** – To clarify committee procedure.
- **Point of Order** – To indicate an error in procedure by the Chair.

6. **Common Motions**

Delegates may motion to:

- Open or close debate.
- Introduce a Moderated Caucus.
- Introduce an Unmoderated Caucus.
- Extend or shorten debate.

- Introduce directives.
- Suspend or adjourn the meeting.

7. Decorum

Delegates are expected to:

- Maintain professional conduct at all times.
- Address all remarks through the Chair.
- Respect opposing arguments.
- Avoid interruptions unless permitted.
- Use formal parliamentary language.

8. Judging Criteria

The Executive Board will primarily assess delegates based on:

- Quality of legal research.
- Application of international law.
- Strength of oral arguments.
- Participation during debate.
- Diplomacy and professionalism.
- Teamwork and courtroom etiquette.

Legal Teams, Portfolios & Committee Documents

1. Role of Legal Teams

- Delegates act as **legal representatives** of their assigned State.
- Their objective is to defend their country's legal position using international law and evidence.
- Arguments should be based on facts, treaties, and judicial precedents rather than political opinions.

2. Common Portfolios

Depending on the committee structure, delegates may serve as:

- **Lead Counsel** – Presents the primary oral arguments and represents the State before the Court.
- **Co-Counsel** – Assists the Lead Counsel and presents supporting arguments.
- **Legal Adviser** – Conducts legal research and interprets international law.
- **Historical Researcher** – Examines historical events, treaties, maps, and official records relevant to the dispute.

3. Responsibilities of Delegates

Delegates are expected to:

- Conduct comprehensive legal research.
- Present clear and logical arguments.
- Cite relevant treaties and legal principles.
- Respond effectively to questions from the Bench and opposing counsel.
- Work collaboratively with members of their legal team.

4. Directives

- Directives are written documents prepared during committee to organise legal arguments or propose procedural actions.
- They should include:
 - A clear title.
 - The objective of the directive.
 - Supporting legal reasoning.
 - Signatories of the sponsoring delegates.

5. Evidence in the ICJ

Delegates should support their arguments using:

- International treaties and conventions.
- Official diplomatic correspondence.
- Historical maps and archival documents.
- Judgments of international courts.
- Customary international law.
- Government records and official statements.

6. Courtroom Etiquette

Delegates should:

- Address the Executive Board respectfully.
- Speak only when recognised by the Chair.
- Maintain professional language and decorum.
- Respect opposing legal teams and their submissions.
- Base all arguments on credible evidence and international law.

7. Key Skills for Success

Strong delegates will demonstrate:

- Thorough legal research.
- Critical analysis of evidence.
- Confident public speaking.
- Effective teamwork.
- Logical reasoning.
- Professional courtroom conduct.

Delegate Tip: In an ICJ committee, the strongest arguments are those supported by authoritative legal sources. Always explain **how** a treaty, legal principle, or historical document strengthens your State's case instead of merely citing it.

Legal Principles Relevant to the Pedra Branca Dispute

1. Territorial Sovereignty

- Refers to a State's exclusive legal authority over a territory.

- The ICJ's primary task was to determine whether **Singapore or Malaysia possessed sovereignty over Pedra Branca**.
- Sovereignty determines which State has the legal right to administer, regulate, and protect the territory.

2. **Effective Occupation (Effectivités)**

- A principle where continuous and peaceful exercise of State authority strengthens a territorial claim.
- Examples include maintaining infrastructure, enforcing laws, conducting patrols, issuing permits, and carrying out official activities.
- The ICJ carefully examined which State exercised greater administrative control over Pedra Branca.

3. **Acquiescence**

- Occurs when a State does not object to another State's actions over a prolonged period.
- A failure to protest may be interpreted as acceptance of those actions.
- The Court considered whether Malaysia had objected consistently to Singapore's administration of Pedra Branca.

4. **Estoppel**

- Prevents a State from contradicting a position or statement upon which another State has reasonably relied.
- The **1953 Johor Letter** became significant because it appeared to acknowledge that Johor did not claim ownership of Pedra Branca.
- Singapore argued that this weakened Malaysia's later sovereignty claim.

5. **Burden of Proof**

- The responsibility lies with each State to provide convincing evidence supporting its claim.
- Evidence may include treaties, historical records, official correspondence, maps, and government actions.
- The Court evaluates both the quality and credibility of the evidence presented.

6. **Peaceful Settlement of Disputes**

- Under the **United Nations Charter**, States are encouraged to resolve disputes through peaceful means.

- Instead of military confrontation, Singapore and Malaysia jointly referred the dispute to the ICJ in 2003.
- The Pedra Branca case is widely regarded as an example of successful peaceful dispute resolution under international law.

7. Importance in This Agenda

- These legal principles formed the basis of the ICJ's 2008 Judgment.
- Delegates should apply these concepts when analysing evidence and constructing legal arguments.
- A strong understanding of these principles will enable delegates to argue their assigned State's case effectively before the Court.

Historical Background

1. Strategic Importance of Pedra Branca

- Pedra Branca is a small granite island located at the eastern entrance of the **Singapore Strait**.
- Despite its size, it occupies one of the busiest maritime routes in the world, making it strategically important for navigation, trade, and maritime security.
- The dispute also concerns the nearby features of **Middle Rocks** and **South Ledge**.

2. Early Historical Claims

- Before the nineteenth century, the waters surrounding Pedra Branca were controlled by the **Sultanate of Johor**, a powerful Malay kingdom that exercised influence over much of the region.
- Malaysia later argued that Pedra Branca formed part of Johor's historic territory and that sovereignty passed to the modern Malaysian State after independence.

3. British Presence and Horsburgh Lighthouse

- In **1844**, the British sought permission from the Sultan of Johor to construct a lighthouse on Pedra Branca to improve the safety of ships navigating the Singapore Strait.
- The **Horsburgh Lighthouse** was completed and began operations in **1851**.
- Singapore argued that Britain and, later, Singapore continuously administered and maintained the lighthouse without objection, demonstrating effective occupation of the island.

4. Emergence of the Dispute

- For many decades, neither State openly challenged the administration of Pedra Branca.
- The dispute gained prominence after **Malaysia published a map in 1979** showing Pedra Branca within its territorial waters.
- Singapore formally rejected this claim, leading to a prolonged diplomatic disagreement between the two countries.

5. Submission to the International Court of Justice

- After years of unsuccessful bilateral negotiations, Singapore and Malaysia agreed in **2003** to submit the dispute to the **International Court of Justice (ICJ)**.
- The Court examined treaties, historical records, official correspondence, maps, and evidence of State conduct before delivering its Judgment on **23 May 2008**.

6. Significance of the Case

- The Pedra Branca dispute is regarded as one of the most influential territorial cases in modern international law.
- It demonstrated how sovereignty can be determined through historical evidence, State practice, and legal principles rather than the use of force.
- The case continues to be studied as an example of the peaceful settlement of international disputes through judicial means.

Key Events and Their Significance

1. 1513 – First Recorded Reference

- Portuguese navigator **Manuel Godinho de Erédia** and early Portuguese records identified Pedra Branca as a prominent maritime feature.
- Although these records did not establish sovereignty, they confirmed the island's existence and importance as a navigational landmark.

2. 1824 – Anglo-Dutch Treaty

- Britain and the Netherlands signed the **Anglo-Dutch Treaty**, dividing their spheres of influence in Southeast Asia.
- The treaty recognised British control over Singapore while the Dutch controlled territories south of the Singapore Strait.

- Although Pedra Branca was not specifically mentioned, both Singapore and Malaysia later referred to this treaty to support their respective territorial claims.

3. 1844 – Approval to Construct Horsburgh Lighthouse

- The British East India Company obtained permission from the Sultan and Temenggong of Johor to construct **Horsburgh Lighthouse** on Pedra Branca.
- Britain argued that this marked the beginning of its administration of the island, while Malaysia maintained that permission to build a lighthouse did not transfer sovereignty.

4. 1851 – Horsburgh Lighthouse Becomes Operational

- The lighthouse officially commenced operations, significantly improving the safety of ships entering the Singapore Strait.
- British authorities maintained, repaired, and managed the lighthouse for many decades, an important factor considered by the ICJ when assessing effective occupation.

5. 1953 – The Johor Letter

- Singapore's Colonial Secretary requested clarification regarding the ownership of Pedra Branca.
- The Acting State Secretary of Johor replied that "**the Johore Government does not claim ownership of Pedra Branca.**"
- Singapore relied heavily on this letter as evidence that Johor had acknowledged it no longer possessed sovereignty, whereas Malaysia argued the official lacked the authority to relinquish territory.

6. 1979–1980 – The Dispute Becomes Formal

- In 1979, Malaysia published a map depicting Pedra Branca within its territorial waters.
- Singapore immediately protested the map in 1980, rejecting Malaysia's claim and asserting its own sovereignty.
- Diplomatic negotiations followed but failed to resolve the disagreement.

7. 2003 – Referral to the International Court of Justice

- Recognising that bilateral negotiations had reached an impasse, both States jointly agreed to submit the dispute to the ICJ.
- This reflected their commitment to resolving the issue peacefully through international law rather than political or military means.

8. 23 May 2008 – ICJ Delivers Its Judgment

- After examining historical records, treaties, maps, official correspondence, and evidence of State conduct, the Court ruled:
 - **Pedra Branca** belongs to **Singapore**.
 - **Middle Rocks** belongs to **Malaysia**.
 - **South Ledge** belongs to the State in whose territorial waters it is located.
- The judgment brought legal certainty to most aspects of the dispute and became a landmark precedent in international territorial law.

Key Legal Documents in the Pedra Branca Case

1. 1824 Anglo-Dutch Treaty

- Signed between **Great Britain** and the **Kingdom of the Netherlands**.
- Divided their colonial spheres of influence in Southeast Asia.
- Although Pedra Branca was not specifically mentioned, both Singapore and Malaysia relied on the treaty to interpret historical territorial boundaries.
- The ICJ examined whether the treaty indirectly affected sovereignty over the island.

2. 1844 Permission to Construct Horsburgh Lighthouse

- The British sought permission from the **Sultan and Temenggong of Johor** to build a lighthouse on Pedra Branca.
- Singapore argued that the subsequent administration of the lighthouse demonstrated sovereign authority.
- Malaysia maintained that granting permission for construction did **not** transfer ownership of the island.

3. 1953 Johor Letter

- The Colonial Secretary of Singapore requested clarification regarding ownership of Pedra Branca.
- The Acting State Secretary of Johor replied that **"the Johore Government does not claim ownership of Pedra Branca."**
- The ICJ regarded this letter as one of the **most significant pieces of evidence**, as it reflected Johor's official position at the time.
- Malaysia argued that the official lacked constitutional authority to surrender sovereignty.

4. Official Maps and Government Records

- Both States submitted historical maps, naval charts, government reports, and administrative records.
- The Court compared these documents to determine which State had exercised greater authority over Pedra Branca.
- Maps alone were not considered conclusive but were used as supporting evidence.

5. United Nations Charter (1945)

- Encourages States to settle international disputes through peaceful means.
- Singapore and Malaysia followed this principle by jointly referring the dispute to the ICJ instead of resorting to force.

6. Statute of the International Court of Justice

- Provides the legal framework governing the Court's jurisdiction and procedures.

- Under **Article 38(1)**, the ICJ applies treaties, customary international law, general principles of law, judicial decisions, and scholarly writings when deciding cases.

7. United Nations Convention on the Law of the Sea (UNCLOS)

- Although the dispute centred on sovereignty, UNCLOS became relevant when determining the status of **South Ledge**, whose ownership depends upon the territorial waters in which it lies.
- The Convention also provides rules for maritime boundaries and territorial seas.

8. 2008 ICJ Judgment

- The final and legally binding decision of the Court.
- Awarded **Pedra Branca to Singapore, Middle Rocks to Malaysia**, and held that **South Ledge belongs to the State in whose territorial waters it is situated**.
- This judgment remains the principal legal authority governing the dispute and should be the primary source consulted by delegates.

Singapore's Arguments Before the International Court of Justice

1. Continuous Administration of Pedra Branca

- Singapore argued that, through British colonial authorities and later the Government of Singapore, it had exercised continuous administration over Pedra Branca for more than 150 years.
- This included maintaining **Horsburgh Lighthouse**, regulating access to the island, conducting inspections, and carrying out official government activities.

2. Effective Occupation (Effectivités)

- Singapore claimed that it had demonstrated **effective occupation** by exercising State authority over the island.
- Evidence presented included:
 - § Maintenance and upgrading of Horsburgh Lighthouse.
 - § Installation of military and communication equipment.
 - § Investigation of maritime accidents.
 - § Control over visits and activities on the island.

3. The 1953 Johor Letter

- Singapore regarded the **1953 Johor Letter** as its strongest piece of evidence.
- The letter stated that "**the Johore Government does not claim ownership of Pedra Branca.**"
- Singapore argued that this showed Johor had acknowledged it no longer possessed sovereignty over the island.

4. Lack of Protest by Malaysia

- Singapore argued that for many decades Malaysia did not object to Singapore's administration of Pedra Branca.
- It maintained that this lack of protest amounted to **acquiescence**, strengthening Singapore's claim under international law.

5. Evidence Submitted to the Court

- Singapore relied on:
 - § Historical correspondence.

§ British colonial records.

§ Government reports.

§ Maritime and hydrographic surveys.

§ Official maps.

§ Records of lighthouse administration.

- These documents were used to demonstrate a consistent exercise of State authority.

6. Singapore's Conclusion

- Singapore argued that sovereignty was established not only through historical records but also through decades of peaceful and continuous administration.
- It requested the Court to recognise its sovereignty over Pedra Branca based on **effective occupation, State conduct, and documentary evidence**.

Outcome: The International Court of Justice accepted many of Singapore's legal arguments and, on **23 May 2008**, awarded sovereignty over **Pedra Branca** to Singapore.

Malaysia's Arguments Before the International Court of Justice

1. Original Sovereignty of the Sultanate of Johor

- Malaysia argued that Pedra Branca historically belonged to the **Sultanate of Johor**, which exercised sovereignty over numerous islands and maritime territories in the region.
- Following Malaysia's independence, it claimed to have inherited this sovereignty as the successor State to Johor.

2. Permission Did Not Transfer Sovereignty

- Malaysia maintained that the **1844 permission** granted to the British to construct **Horsburgh Lighthouse** did not transfer ownership of Pedra Branca.
- It argued that the permission merely allowed Britain to build and operate a lighthouse while sovereignty remained with Johor.

3. Challenge to the 1953 Johor Letter

- Malaysia argued that the **Acting State Secretary of Johor** did not possess the constitutional authority to surrender or renounce sovereignty over State territory.
- Therefore, the statement that Johor did not claim ownership of Pedra Branca should not be interpreted as a legal transfer or abandonment of sovereignty.

4. Historical Maps and Documentary Evidence

- Malaysia presented historical maps, colonial records, official correspondence, and archival documents to demonstrate that Pedra Branca had traditionally been regarded as part of Johor's territory.
- It argued that these records supported its claim of historical title over the island.

5. Sovereignty Cannot Be Lost Through Silence Alone

- Malaysia rejected Singapore's argument that the absence of frequent protests amounted to **acquiescence**.
- It maintained that sovereignty over territory cannot be lost simply because a State did not object to every administrative activity carried out by another State.

6. Claim over Middle Rocks and South Ledge

- Malaysia argued that **Middle Rocks** and **South Ledge**, located close to Pedra Branca, had always formed part of Johor's maritime territory.
- It requested the Court to recognise Malaysia's sovereignty over these maritime features based on historical title and geographical proximity.

7. Malaysia's Conclusion

- Malaysia contended that its **historical sovereignty**, inherited from the Sultanate of Johor, had never been legally transferred to Britain or Singapore.
- It requested the Court to uphold its claim over Pedra Branca and the surrounding maritime features based on historical ownership and international law.

Outcome: While the ICJ did **not** uphold Malaysia's claim to **Pedra Branca**, it recognised **Malaysia's sovereignty over Middle Rocks**. The Court also ruled that **South Ledge belongs to the State in whose territorial waters it is situated**, leaving maritime delimitation to be determined separately.

Judgment of the International Court of Justice

1. Delivery of the Judgment

- On **23 May 2008**, the International Court of Justice delivered its final judgment in the case **Sovereignty over Pedra Branca/Pulau Batu Puteh, Middle Rocks and South Ledge (Malaysia v. Singapore)**.
- The judgment was **final, legally binding, and without appeal**, in accordance with the Statute of the ICJ.

2. Decision on Pedra Branca

- The Court awarded **sovereignty over Pedra Branca to Singapore**.

- It concluded that Singapore and its predecessor, the United Kingdom, had exercised continuous and public authority over the island.
- The Court also considered the **1953 Johor Letter** and Malaysia's limited objections to Singapore's activities as important factors supporting Singapore's claim.

3. Decision on Middle Rocks

- The ICJ ruled that **Middle Rocks belongs to Malaysia**.
- Unlike Pedra Branca, there was insufficient evidence to show that Singapore had exercised sovereign authority over Middle Rocks.
- Therefore, sovereignty remained with Malaysia as the successor to the Sultanate of Johor.

4. Decision on South Ledge

- The Court did not award South Ledge directly to either State.
- It ruled that **South Ledge belongs to the State in whose territorial waters it is located**.
- This meant that the final ownership depended on the maritime boundary between Singapore and Malaysia, which would need to be determined separately.

5. Reasoning of the Court

- The ICJ based its judgment on:
 - § Historical evidence.
 - § Official correspondence.
 - § State conduct over time.

§ Principles of international law, particularly **effective occupation (effectivités)** and **territorial sovereignty**.

- The Court emphasised that sovereignty is determined by legal evidence rather than geographical proximity alone.

6. Significance of the Judgment

- The Pedra Branca judgment is regarded as one of the most important territorial decisions in modern international law.
- It demonstrated that complex international disputes can be resolved peacefully through judicial settlement instead of conflict.
- The case continues to serve as a landmark precedent for disputes involving territorial sovereignty and maritime boundaries.

Key Takeaway for Delegates: The ICJ did not decide the case based on the size or location of the islands. Instead, it carefully examined the evidence, historical documents, and conduct of both States before determining which legal claim was stronger under international law

Points to Consider Before The Committee

To perform effectively in the International Court of Justice, delegates must go beyond memorising facts and instead analyse the legal, historical, and practical aspects of the dispute. The following questions are intended to guide your research and help you prepare persuasive legal arguments.

- 1. Does historical ownership alone establish sovereignty over Pedra Branca? Why or why not?**
- 2. How significant was the 1953 Johor Letter in influencing the Court's decision? Could it have been interpreted differently?**
- 3. Should effective occupation be given greater weight than historical title when determining territorial sovereignty?**

4. How did the administration and maintenance of Horsburgh Lighthouse strengthen Singapore's legal claim?
5. Did Malaysia provide sufficient evidence to prove that Pedra Branca remained part of the Sultanate of Johor after British administration began?
6. Was the ICJ justified in awarding Pedra Branca to Singapore while awarding Middle Rocks to Malaysia? Explain the legal reasoning behind this distinction.
7. How should South Ledge's sovereignty be determined, considering the ICJ linked its ownership to territorial waters rather than historical title?
8. What role did treaties, official correspondence, historical maps, and government records play in the Court's final judgment? Which form of evidence was the most persuasive?
9. What lessons can the international community learn from the peaceful resolution of the Pedra Branca dispute through the International Court of Justice?
10. If a similar territorial dispute were to arise today, would the legal principles applied in the Pedra Branca case still be relevant? Justify your answer with reference to international law.

Delegate Preparation Checklist

Before attending committee, ensure that you:

- ☐ Understand the complete historical background of the dispute.
- ☐ Are familiar with the arguments presented by both Singapore and Malaysia.
- ☐ Have researched the **2008 ICJ Judgment** thoroughly.
- ☐ Can explain key legal principles such as **territorial sovereignty, effective occupation, acquiescence, and estoppel**.
- ☐ Can cite important treaties and official documents during debate.
- ☐ Are prepared to respond to questions from the Bench using legal reasoning and evidence.
- ☐ Maintain professionalism, respect parliamentary procedure, and support every argument with credible sources.

Remember: In an ICJ committee, delegates are evaluated not only on their speaking ability but also on the strength of their legal analysis, use of evidence,

understanding of international law, and ability to defend their arguments before the Court

Questions a Resolution Must Answer

Although the International Court of Justice does not pass resolutions like the General Assembly, delegates should address the following legal questions during committee. These questions will help structure arguments, guide courtroom debate, and ensure all major aspects of the agenda are examined.

- 1. Who possesses the stronger legal claim to Pedra Branca under international law?**
 - Should sovereignty be determined by historical title, effective occupation, or a combination of both?
- 2. How should the 1953 Johor Letter be interpreted?**
 - Did it constitute an official acknowledgement that Johor no longer claimed Pedra Branca?
 - Did the official who signed the letter possess the authority to make such a declaration?
- 3. What legal significance should be attached to Singapore's administration of Horsburgh Lighthouse?**
 - Does maintaining and operating a lighthouse amount to exercising sovereignty?
 - Which governmental actions demonstrate effective occupation?
- 4. Did either State fail to protect its territorial claim?**
 - Did Malaysia's limited objections amount to acquiescence?
 - Did Singapore consistently exercise sovereign authority over the island?
- 5. How should Middle Rocks and South Ledge be treated under international law?**
 - Should geographical proximity influence sovereignty?
 - What role does maritime delimitation play in determining ownership of South Ledge?
- 6. Were the ICJ's findings consistent with international legal principles?**
 - Did the Court correctly apply territorial sovereignty, effective occupation, estoppel, and acquiescence?
 - Could another interpretation of the evidence have produced a different outcome?

- 7. How should States resolve similar territorial disputes in the future?**
- Should disputes always be referred to international judicial bodies?
 - What role should diplomacy and bilateral negotiations play before approaching the ICJ?
- 8. What measures can Singapore and Malaysia adopt to strengthen bilateral cooperation despite the dispute?**
- How can maritime security, navigation, and environmental protection be jointly managed?
 - What mechanisms can prevent future territorial disagreements?

Delegate Research Checklist

Before committee, delegates should be able to:

- Explain the historical background of the dispute.
- Analyse the legal arguments of both Singapore and Malaysia.
- Interpret the major treaties and legal documents.
- Apply key principles of international law to factual situations.
- Defend their position using evidence rather than opinion.
- Respond confidently to judicial questioning from the Bench.

A successful ICJ delegate argues like a lawyer, reasons like a judge, and supports every claim with international law and credible evidence.

Bibliography

Delegates are strongly encouraged to consult official documents and credible academic sources in addition to this Background Guide. The following references provide a comprehensive understanding of the **Singapore v. Malaysia: The Pedra Branca Island Dispute** and the principles of international law relevant to the committee.

Primary Sources

1. **International Court of Justice (2008).** *Sovereignty over Pedra Branca/Pulau Batu Puteh, Middle Rocks and South Ledge (Malaysia v. Singapore)*, Judgment of 23 May 2008.
2. **Statute of the International Court of Justice (1945).**
3. **Charter of the United Nations (1945).**
4. **United Nations Convention on the Law of the Sea (UNCLOS) (1982).**
5. **Anglo-Dutch Treaty (1824).**
6. **Crawford Treaty (1824).**

7. **The Johor Letter (1953)** – Correspondence between the Colonial Secretary of Singapore and the Acting State Secretary of Johor regarding the ownership of Pedra Branca.
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Government Publications

8. **Government of Singapore** – Ministry of Foreign Affairs publications on the Pedra Branca case.
 9. **Government of Malaysia** – Ministry of Foreign Affairs publications concerning the Pedra Branca dispute.
 10. Official memorials, counter-memorials, replies, and rejoinders submitted by both Singapore and Malaysia to the International Court of Justice.
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Recommended Books & Journals

11. Malcolm N. Shaw – *International Law*.
 12. James Crawford – *Brownlie's Principles of Public International Law*.
 13. Martin Dixon – *Textbook on International Law*.
 14. *American Journal of International Law (AJIL)* – Articles discussing territorial sovereignty and ICJ jurisprudence.
 15. *Leiden Journal of International Law* – Research on international dispute settlement and maritime law.
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Suggested Areas for Further Research

Delegates should independently research:

- The complete **2008 ICJ Judgment**.
- Territorial sovereignty under international law.
- The doctrine of **effective occupation (effectivités)**.
- The principles of **acquiescence** and **estoppel**.
- Maritime boundary delimitation under **UNCLOS**.
- The history of the **Sultanate of Johor**.
- The construction and administration of **Horsburgh Lighthouse**.
- The legal significance of the **1953 Johor Letter**.
- Previous ICJ territorial disputes, such as **Ligitan and Sipadan**, **Pulau Batu Puteh**, and **Nicaragua v. Colombia**, to understand how the Court applies international legal principles.

Closing Note

The Executive Board hopes that this Background Guide has provided a strong foundation for your preparation. However, it should be regarded as **an introduction rather than an exhaustive source of information**. The quality of debate in an ICJ committee depends upon each delegate's ability to conduct independent legal research, analyse evidence critically, and present well-reasoned arguments supported by authoritative sources.

We encourage every delegate to approach committee with professionalism, intellectual curiosity, and respect for international law. We look forward to witnessing informed legal advocacy and meaningful debate throughout **The Foundation School JMUN 2026**.

"Justice is best served when disputes are resolved through law, dialogue, and mutual respect."

— **Executive Board**

International Court of Justice

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